

COMMITTEE ON NATURAL RESOURCES, ENERGY & WATER
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1137
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 40-360.21, Arizona Revised Statutes, is amended
3 to read:

4 40-360.21. Definitions

5 In this article, unless the context otherwise requires:

6 1. "Abandoned" means no longer in service and physically
7 disconnected from a portion of the facility, or from any other facility,
8 that is in use or still carries service.

9 2. "Apartment community" means any real property that has one or
10 more structures and THAT contains five or more dwelling units for rent or
11 lease that are subject to title 33, chapter 10. For the purposes of this
12 paragraph, "dwelling unit" has the same meaning prescribed in section
13 33-1310.

14 3. "Building official" means the agency or officer employed by a
15 political subdivision of this state and charged with the administration
16 and enforcement of a building code to regulate the quality, type of
17 material and workmanship of construction of buildings or structures.

18 4. "Careful and prudent manner" means conducting an excavation in
19 such a way that when the excavation is less than or equal to twenty-four
20 inches from an underground facility that is marked with stakes or paint or
21 in some customary manner, the facility is carefully exposed with hand
22 tools, and the uncovered facility is supported and protected.

23 5. "Carefully" means acting with reasonable care under the
24 circumstances.

25 6. "Cross culverts or similar roadway drainage facilities" means
26 transverse drainage structures with both ends or openings visible
27 including box culverts, drainage pipes or other covered structures.

1 7. "Detectible underground location device" means any device that
2 is installed underground and that is capable of being detected from above
3 ground with an electronic locating device.

4 8. "Excavation" means any operation in which earth, rock or other
5 material in the ground is moved, removed or otherwise displaced by means
6 or use of any tools, equipment or explosives and includes, without
7 limitation, grading, trenching, digging, ditching, drilling, augering,
8 boring, tunnelling, scraping, cable or pipe plowing and driving.

9 ~~12.~~ 9. "Homeowners' association" has the same meaning prescribed
10 in section 33-2001.

11 ~~9.~~ 10. "Implied easement" means any easement or right-of-way on
12 private property required to provide utility services by means of
13 underground facilities in property of the owner requesting such service.

14 ~~10.~~ 11. "Inactive" means:

15 (a) That portion of an underground facility that is not in use but
16 is still connected to the facility, or to any other facility, that is in
17 use or still carries service.

18 (b) A new underground facility that has not been connected to any
19 portion of an existing facility.

20 ~~11.~~ 12. "Installation records of an underground facility" means
21 maps, drawings, diagrams, surveys, schematics, illustrations, sketches or
22 any other depictions or descriptions of an underground facility that
23 reflect the location at the time of installation of the underground
24 facility and any surface extensions in a reasonably accurate manner.

25 13. "INTERACTIVE POSITIVE RESPONSE SYSTEM" MEANS AN ELECTRONIC
26 INTERNET-BASED PLATFORM THAT IS ADMINISTERED BY A ONE-CALL NOTIFICATION
27 CENTER AND THAT ENABLES EXCAVATORS AND UNDERGROUND FACILITIES OPERATORS TO
28 EXCHANGE, RECORD AND VERIFY RESPONSES AND LOCATE STATUS UPDATES AND OTHER
29 REQUIRED COMMUNICATIONS.

30 ~~13.~~ 14. "Landlord" has the same meaning prescribed in section
31 33-1310 for an apartment community and has the same meaning prescribed in
32 section 33-1409 for a mobile home park.

33 15. "LARGE PROJECT":

34 (a) MEANS AN EXCAVATION ACTIVITY THAT MEETS ~~[ONE OR MORE]~~ [EITHER]
35 OF THE FOLLOWING CRITERIA:

36 (i) THE OVERALL PROJECT LENGTH EXCEEDS ONE MILE OF LINEAR
37 EXCAVATION OR A POLYGON WITH AN AREA OF A QUARTER SQUARE MILE OR MORE.

38 (ii) THE PROJECT DURATION IS EXPECTED TO EXCEED NINETY CALENDAR
39 DAYS.

40 ~~[(iii) THE PROJECT INCLUDES AT LEAST TEN CONTIGUOUS LAND PARCELS.]~~

41 (b) DOES NOT INCLUDE THE ON-SITE DEVELOPMENT OF A NEW RESIDENTIAL
42 OR COMMERCIAL PROJECT ON A PREVIOUSLY UNDEVELOPED PARCEL OF LAND.

43 16. "LARGE PROJECT NOTIFICATION" MEANS A NOTICE THAT IS FILED WITH
44 A ONE-CALL NOTIFICATION CENTER FOR A LARGE PROJECT.

45 ~~14.~~ 17. "Locator strip" means a type of detectible underground
46 location device that consists of a plastic or other durable material
47 ribbon containing a material capable of being detected from above ground

1 with an electronic locating device and color coded by type of underground
2 facility.

3 ~~15.~~ 18. "Locator wire" means a type of detectible underground
4 location device that consists of a copper wire or metallic, conductive,
5 noncorrosive trace wire capable of being detected from above ground with
6 an electronic locating device.

7 ~~16.~~ 19. "Mobile home park" has the same meaning prescribed in
8 section 33-1409.

9 ~~17.~~ 20. "One-call notification center" means an organization of
10 owners or operators of underground facilities that provides a ~~telephone~~
11 ~~number~~ notification service for the purpose of receiving and distributing
12 to its members advance notifications from persons regarding planned
13 excavations.

14 ~~18.~~ 21. "Person":

15 (a) Means any individual, firm, joint venture, partnership,
16 corporation, association, homeowners' association, municipality,
17 governmental unit, department or agency. ~~and shall include~~

18 (b) INCLUDES any trustee, receiver, assignee or personal
19 representative ~~thereof~~ OF AN ENTITY LISTED IN SUBDIVISION (a) OF THIS
20 PARAGRAPH.

21 ~~19.~~ 22. "Routine road maintenance grading" means the routine
22 grading or resurfacing of the concrete, asphaltic or composite surface but
23 not the subbase of a roadway by ~~the~~ THIS state or a political subdivision
24 of ~~the~~ THIS state for the purpose of maintaining the surface condition of
25 the road and includes recovery of material from a borrow ditch.

26 ~~20.~~ 23. "Stakes or paint or in some customary manner" means
27 marking the location of an underground facility by the colors established
28 by the commission. These colors shall be restricted to the underground
29 facility location.

30 ~~21.~~ 24. "Underground facilities operator" means a public utility,
31 municipal corporation, landlord or other person having the right to bury
32 underground facilities in any public street, alley, right-of-way dedicated
33 to the public use or public utility easement, in any apartment community
34 or mobile home park or pursuant to any express or implied private property
35 easement. Underground facilities operator does not include a homeowner or
36 homeowners' association that owns a sewer facility in a public street,
37 alley, right-of-way dedicated to public use or public utility easement.

38 ~~22.~~ 25. "Underground facility" means any item of personal property
39 that is buried or placed below ground for use in connection with the
40 storage or conveyance of water, sewage, electronic, telephonic or
41 telegraphic communications, electric energy, oil, gas or other substances,
42 and shall include but not be limited to pipes, sewers, conduits, cables,
43 valves, lines, wires, manholes, attachments and those portions of poles
44 and their attachments below ground except cross culverts or similar
45 roadway drainage facilities and landscape irrigation systems of two inches
46 in diameter or less.

1 26. "WHITE LINING" MEANS THE PRACTICE OF MARKING THE PROPOSED AREA
2 OF EXCAVATION ON THE GROUND SURFACE USING ANY OF THE FOLLOWING:

3 (a) PAINT.

4 (b) FLAGS.

5 (c) CHALK.

6 (d) ANY OTHER METHOD THAT IS CUSTOMARILY USED.

7 ~~23-~~ 27. "Working day" means every day excluding Saturday of each
8 week, the fourth Friday in November, Sunday of each week and other legal
9 holidays as prescribed in section 1-301.

10 Sec. 2. Section 40-360.22, Arizona Revised Statutes, is amended to
11 read:

12 40-360.22. Excavations; determining location of underground
13 facilities; providing information; excavator
14 marking; on-site representative; validity period
15 of markings; liability for misuse of locate
16 requests; detectible underground locating
17 devices; civil penalty; large project
18 coordination

19 A. A person shall not make or begin any excavation in any public
20 street, alley, right-of-way dedicated to the public use or public utility
21 easement or in any express or implied private property utility easement or
22 in any apartment community or mobile home park without first determining
23 whether underground facilities will be encountered, and if so where they
24 are located from each and every underground facilities operator and taking
25 measures for control of the facilities in a careful and prudent manner.
26 For all excavations in an apartment community or mobile home park, the
27 excavator shall inform the landlord as promptly as ~~practical~~ PRACTICABLE
28 that the excavator intends to submit an inquiry to the landlord that will
29 trigger the landlord's obligations provided by subsection B of this
30 section and the inquiry itself shall be made by certified mail to the
31 landlord, using a form prepared by a one-call notification center. The
32 inquiry to a landlord may be made by a one-call notification center for a
33 reasonable fee to the excavator.

34 B. Except as otherwise provided in this subsection ~~OR SUBSECTION R~~
35 ~~OF THIS SECTION, upon~~ ON receipt of the excavator's inquiry, the
36 underground facilities operator shall respond as promptly as ~~practical~~
37 PRACTICABLE, but ~~in no event~~ NOT later than two working days, by carefully
38 marking ~~such~~ THE UNDERGROUND facility with stakes or paint or in some
39 customary manner. A landlord shall respond in the same manner and as
40 promptly as ~~practical~~ PRACTICABLE, but ~~in no event~~ NOT later than ten
41 working days. ~~No~~ A person ~~shall~~ MAY NOT begin excavating before the
42 location and marking are complete or the excavator is notified that
43 marking is unnecessary. If the excavator consents, an underground
44 facilities operator may notify a one-call notification center that marking
45 is unnecessary pursuant to a method established by the one-call
46 notification center. An underground facilities operator may assign any
47 marking or notification obligations required by this subsection to an

1 agent or servant of the underground facilities operator. An underground
2 facilities operator ~~may~~ **SHALL** notify the excavator that marking is
3 unnecessary pursuant to ~~any mutually agreeable method~~ **THE INTERACTIVE**
4 **POSITIVE RESPONSE SYSTEM.**

5 ~~C. On a timely request by the underground facilities operator, the~~
6 ~~excavator shall mark the boundaries of the area requested to be excavated~~
7 ~~in accordance with a color code designated by the commission or by~~
8 ~~applicable custom or standard in the industry. A request under this~~
9 ~~subsection for excavator marking does not alter any other requirement of~~
10 ~~this section.~~

11 **C. BEFORE AN EXCAVATOR SUBMITS A LOCATION REQUEST TO THE ONE-CALL**
12 **NOTIFICATION CENTER, THE EXCAVATOR SHALL CLEARLY AND CAREFULLY MARK WITH**
13 **WHITE LINING THE AREA THAT IS REQUESTED TO BE EXCAVATED IN COMPLIANCE WITH**
14 **A COLOR CODE THAT IS ESTABLISHED BY THE COMMISSION OR BY CUSTOM OR**
15 **STANDARD. THIS SUBSECTION:**

16 **1. DOES NOT APPLY TO EXCAVATIONS THAT ARE PERFORMED BY A PERSON ON**
17 **A SINGLE-FAMILY RESIDENTIAL PROPERTY THAT IS OWNED OR OCCUPIED BY THE**
18 **PERSON.**

19 **2. EXCEPT FOR EXCAVATIONS PRESCRIBED IN PARAGRAPH 1 OF THIS**
20 **SUBSECTION, APPLIES TO ALL EXCAVATIONS, INCLUDING LARGE PROJECTS AND**
21 **EXCAVATIONS ON [SINGLE-FAMILY] RESIDENTIAL PROPERTIES.**

22 **D. Except as provided in subsection F of this section, a person**
23 **shall not begin excavating in any apartment community or mobile home park**
24 **before the landlord has completed marking the underground facility or the**
25 **excavator is notified that marking is unnecessary. After underground**
26 **facility markings are complete or the excavator has received notice that**
27 **marking is unnecessary, an excavator shall notify the landlord if any of**
28 **the following conditions exist:**

29 **1. Visible and obvious evidence, such as pavement cuts, that would**
30 **alert a reasonable excavator to the presence of an unmarked underground**
31 **facility within the boundary of the intended area of excavation.**

32 **2. The excavator has concerns regarding the accuracy and meaning of**
33 **the marks.**

34 **3. The excavator encounters an underground facility that has not**
35 **been marked.**

36 **4. The excavator encounters an underground facility that has been**
37 **incorrectly marked or marked in the wrong location.**

38 **E. For every excavation in an apartment community or mobile home**
39 **park where the excavation method is boring:**

40 **1. Every underground facilities operator shall be notified of this**
41 **methodology.**

42 **2. The excavator shall ensure that sufficient clearance is**
43 **maintained between the bore path and any marked underground facility.**

44 **3. The excavator shall visually check the drill head each time it**
45 **passes through potholes, entrances and exit pits, including during**
46 **pullback.**

1 4. Each underground facilities operator shall be given a reasonable
2 opportunity to inspect its facility before and during the boring
3 operation.

4 F. If a landlord fails to respond to an excavator's request in a
5 manner required by this article, an excavator does not violate this
6 article and fulfills the standard of care of a reasonably prudent
7 excavator if the excavator complies with all of the following:

8 1. One working day before conducting the excavation, the excavator
9 notifies the landlord in writing or by fax that the excavator has
10 determined that the acts or omissions of the landlord ~~is~~ CONSTITUTE a
11 refusal to respond to an excavator's request.

12 2. The excavator investigates for the presence of visible and
13 obvious evidence that would alert a reasonable excavator to the presence
14 of an unmarked underground facility within the boundaries of the area to
15 be excavated.

16 3. The excavator carefully locates all unmarked facilities that are
17 known to exist due to the excavator's investigation performed pursuant to
18 paragraph 2 of this subsection using one of the methods listed in
19 subsection G of this section and carefully marks the facilities with
20 stakes or paint or in some customary manner. In addition, when a landlord
21 provides verbal or written information regarding the location of
22 underground facilities that are within the boundaries of the area to be
23 excavated, the excavator carefully locates all such identified facilities
24 using one of the methods listed in subsection G of this section and
25 carefully marks the facilities with stakes or paint or in some customary
26 manner.

27 4. The excavator takes measures to control all such located
28 facilities in a careful and prudent manner.

29 5. The excavator shall not excavate if the excavator receives a
30 response from the landlord that notifies or alerts the excavator to the
31 presence of a mistake or an intention by the landlord to respond in a
32 manner that is consistent with this article, even if the response will be
33 untimely. A landlord's delay, failure to respond to a location request,
34 failure to mark or other noncompliance is not excused by the excavator's
35 or landlord's compliance with this subsection.

36 G. Except as otherwise provided in this section, in performing the
37 marking required by subsection B of this section, the underground
38 facilities operator of an underground facility installed after December
39 31, 1988 in a public street, alley or right-of-way dedicated to public use
40 or public utility easement, but not including any express or implied
41 private property utility easement, shall carefully locate the facility by
42 referring to installation records of the facility that are in the
43 possession of the underground facility operator and utilizing one of the
44 following methods:

45 1. Vertical line or facility markers.

46 2. Locator strip or locator wire.

47 3. Signs or permanent markers.

1 4. Electronic or magnetic location or tracing techniques.
2 5. Electronic or magnetic sensors or markers.
3 6. Metal sensors or sensing techniques.
4 7. Sonar techniques.
5 8. Underground electrical or radio transmitters.
6 9. Manual location techniques, including pot-holing.
7 10. Surface extensions of underground facilities.
8 11. Any other surface or subsurface location technique that is at
9 least as accurate as the other marking methods in this subsection and that
10 is not prohibited by the commission or by federal or state law. This
11 paragraph does not obligate an underground facilities operator to be aware
12 of and utilize every surface or subsurface location technique available.
13 H. Except as otherwise provided in this section, for an underground
14 facility other than one installed after December 31, 1988, in a public
15 street, alley or right-of-way dedicated to public use or public utility
16 easement, in performing the marking required by subsection B of this
17 section, the underground facilities operator may refer to installation
18 records or other records relating to the facility to assist in locating
19 the facility and shall carefully locate the facility utilizing one of the
20 methods listed under subsection G of this section.
21 I. If an underground facilities operator is unable to complete the
22 location and marking within the time period provided by subsection B of
23 this section, the UNDERGROUND facilities operator shall satisfy the
24 requirements of this section by providing prompt notice of these facts to
25 the excavator and assigning one or more representatives to be present on
26 the excavation site at all pertinent times as requested by the excavator
27 to provide facility location services until the facilities have been
28 located and marked or the excavator is notified that marking is
29 unnecessary pursuant to any mutually agreeable method. A person that
30 receives notice from the underground facilities operator of these facts
31 shall not begin excavating before the underground facilities operator has
32 completed marking the underground facility or the excavator is notified
33 that marking is unnecessary. Except as provided in subsection J of this
34 section, the underground facilities operator shall bear all of its own
35 expenses associated with assigning representatives.
36 J. The marking required by subsection B of this section is valid
37 for fifteen working days from the date of the marking. If the excavation
38 will continue past the validity period of the marks as provided by this
39 subsection, the excavator shall notify the underground facilities operator
40 or an organization designated by the underground facilities operator at
41 least two working days before the end of the validity period. All
42 requests for facility markings and requests to extend the validity period
43 of the markings shall be for the purpose of excavating within the validity
44 period of the markings. An excavator that requests facility markings
45 shall limit the request to an area that can reasonably be excavated within
46 the validity period of the markings. A person who violates this
47 subsection is liable to the one-call notification center and to all

1 affected underground facilities operators for any damages proximately
2 caused by the violation, including economic loss.

3 K. ~~Nothing in~~ NOTWITHSTANDING THE ~~[PRECONSTRUCTION CONFERENCE]~~
4 ~~[LARGE PROJECT COORDINATION MEETING]~~ THAT IS REQUIRED ~~[FOR A LARGE~~
5 ~~PROJECT]~~ ~~[BY SUBSECTION R OF THIS SECTION]~~, this section ~~shall be~~
6 ~~construed to~~ DOES NOT prevent an excavator and an underground facilities
7 operator from holding a preconstruction conference regarding marking and
8 location of underground facilities and entering into a mutually agreeable
9 written schedule for marking or excavating or written arrangement that may
10 constrain the excavation methods or that may provide for the delivery of
11 installation records to the excavator for the purpose of satisfying the
12 requirements of this section, except that this subsection does not
13 eliminate the excavator's obligation to notify the underground facilities
14 operator to locate and mark excavation sites under subsection B of this
15 section based on the actual construction schedule.

16 L. For abandoned and apparently abandoned underground facilities:

17 1. The underground facilities operator shall notify the excavator
18 whether the facility is active or abandoned. An inactive facility shall be
19 considered active for purposes of this subsection. This section does not
20 obligate any person to represent that an underground sewer facility in any
21 public street, alley, right-of-way dedicated to public use or public
22 utility easement is abandoned if it was installed on or before December
23 31, 2005 and it is not owned by an underground facilities operator of a
24 sewer system. This paragraph does not obligate a landlord to represent
25 that an underground facility in any apartment community or mobile home
26 park is abandoned if it was installed before January 1, 2007.

27 2. For an underground facility abandoned after December 31, 1988 or
28 covered by installation records prepared under section 40-360.30, the
29 underground facilities operator may not advise or represent to the
30 excavator that a facility or portion of a facility is abandoned unless the
31 underground facilities operator has verified, by reference to installation
32 records or by testing, that the facility or portion is actually abandoned
33 and not merely inactive. For all other abandoned or apparently abandoned
34 underground facilities, each one-call notification center shall establish
35 a method of providing personnel from an underground facilities operator
36 qualified to safely inspect and verify that the facility is abandoned or
37 active. For the purposes of this article, an underground facilities
38 operator shall not represent that an underground facility is abandoned
39 unless the facility has been verified as abandoned pursuant to this
40 subsection.

41 3. For the purposes of this article, if an excavator encounters an
42 apparently abandoned underground facility, the excavator shall not treat
43 the underground facility as abandoned until the excavator has received
44 notification that the underground facility is abandoned pursuant to
45 paragraph 1 of this subsection or has notified the underground facilities
46 operator of the apparent abandonment and has received verification of
47 abandonment pursuant to paragraph 2 of this subsection.

1 4. Each one-call notification center may establish a method for
2 reimbursing the verifying underground facilities operator for the expenses
3 incurred under paragraph 2 of this subsection. The reimbursement method
4 shall not include any charge or expense to the excavator. A landlord that
5 fails to advise or represent that an underground facility is abandoned
6 pursuant to paragraph 1 of this subsection, whose underground facility is
7 verified as abandoned pursuant to this subsection and who has not filed
8 information with a one-call notification center is liable to the one-call
9 notification center and to all affected underground facilities operators
10 and excavators for the cost of verifying abandonment together with any
11 damages, including economic loss, proximately caused by the violation.

12 M. All new and active underground facilities installed in any real
13 property after December 31, 2005 shall be installed with a detectible
14 underground location device unless the facility is capable of being
15 detected from above ground with an electronic locating device or the
16 facility is installed within single family residential property and is
17 beneath a pool, permanent pool decking that is less than forty-eight
18 inches from the pool or a permanent building. A person who violates this
19 subsection is subject to a civil penalty in an amount ~~OF not to exceed~~
20 ~~five thousand dollars~~ MORE THAN \$5,000. The building official shall
21 administer and enforce this subsection for all underground facilities
22 except those that are installed for a public utility or municipal
23 corporation. Any penalties received by the building official shall be
24 deposited in the municipality's or political subdivision's general fund,
25 as applicable. Except as required by a city, town or county building code
26 or other related code, for purposes of locating an underground facility a
27 building official or political subdivision shall not compel the
28 installation of one or more clean-outs on any underground sewer facility
29 that is owned by another person and serves one customer where any portion
30 of the underground sewer facility is in any public street, alley,
31 right-of-way dedicated to public use, private property or easement.

32 N. ~~Nothing in~~ This section ~~shall be construed as prohibiting~~ DOES
33 NOT PROHIBIT the use of warning tape, warning markers or any other warning
34 device by the underground facilities operator.

35 O. For every underground facilities operator of a sewer system:

36 1. For the purposes of this article, an underground facilities
37 operator of a sewer system is responsible for locating and carefully
38 marking the underground sewer facilities owned by another person pursuant
39 to subsection B of this section if those underground facilities are
40 installed after December 31, 2005 and are in any public street, alley,
41 right-of-way dedicated to public use or public utility easement.

42 2. In performing the marking required by this subsection, the
43 underground facilities operator of the sewer system shall carefully locate
44 the facility by referring to installation records of the facility and by
45 using one of the methods listed in subsection G of this section.

46 3. This subsection does not obligate an underground facilities
47 operator of a sewer system to locate and mark the underground sewer

1 facilities owned by another person if the customer receiving sewer service
2 from the underground sewer facility refuses to grant permission to the
3 underground facilities operator of a sewer system to access the real
4 property for the purpose of ascertaining the location of the underground
5 sewer facility in any public street, alley, right-of-way dedicated to
6 public use or public utility easement.

7 4. This subsection does not obligate an underground facilities
8 operator of a sewer system to maintain, clean or unstop underground sewer
9 facilities owned by another person.

10 P. For every landlord:

11 1. For the purposes of this article, each landlord is responsible
12 for marking the underground facilities operated by the landlord pursuant
13 to subsection B of this section. For the purposes of this paragraph,
14 "underground facilities operated by the landlord" includes every
15 underground facility that is in an apartment community or a mobile home
16 park and that:

17 (a) Discharges into an underground facility that is operated by the
18 landlord.

19 (b) Is supplied by an underground facility that is operated by the
20 landlord.

21 (c) Is not operated by a public utility or municipal corporation.

22 2. If a landlord is unable to complete the location and marking
23 within the time period provided by subsection B of this section, the
24 landlord shall satisfy its obligations in the manner provided by
25 subsection I of this section. ~~Nothing in~~ This subsection ~~shall be~~
26 ~~construed to~~ DOES NOT prevent the excavator and the landlord from entering
27 into a mutually agreeable written schedule or written arrangement for
28 satisfying the requirements of this section in the manner provided by
29 subsection K of this section.

30 3. In performing the marking required by this subsection for an
31 underground facility installed after December 31, 2006, the landlord shall
32 carefully locate the facility by referring to installation records of the
33 facility that are in the possession of the landlord and by using one of
34 the methods listed in subsection G of this section.

35 4. In performing the marking required by this subsection for an
36 underground facility installed before January 1, 2007, the landlord may
37 refer to installation records or other records relating to the facility to
38 assist in locating the facility and shall locate the facility using one of
39 the methods listed in subsection G of this section.

40 5. Subject to the availability of monies, landlords may apply for
41 grants from a grant account established for the purpose of meeting the
42 standards prescribed by this article and for the purpose of creating
43 installation records for facilities that are not required to be created or
44 maintained by this article.

45 6. Notwithstanding any other provision in this article, a landlord
46 is not liable for any costs or expenses, including damage to third
47 parties, resulting from damage to an underground sewer facility owned by

1 the landlord and located within a public right-of-way if the damage was
2 not caused by either:

3 (a) The landlord's or tenant's actions.

4 (b) The landlord's or tenant's refusal to grant access to the
5 operator of the sewer system that connects to the landlord's underground
6 sewer facility.

7 7. This article does not obligate a landlord to locate and mark a
8 facility owned by a tenant if the tenant owns the mobile home, the tenant
9 refuses to grant permission to the landlord to access the mobile home and
10 the facility cannot be located without accessing the mobile home.

11 8. Any rule, regulation, lease or agreement that purports to
12 obligate a tenant to perform the landlord's obligations required by this
13 article is against the public policy of this state and is void.

14 9. This subsection does not obligate a landlord to maintain, clean
15 or unstop underground facilities owned by another person.

16 Q. All inquiries and notices to a landlord shall be made to the
17 address on file at a one-call notification center. Notwithstanding any
18 other law, if the landlord has not filed information at the one-call
19 notification center, the excavator does not violate this article and
20 fulfills the standard of care of a reasonably prudent excavator if the
21 excavator makes the inquiry or notice to the property owner of record
22 according to the records of the county assessor in the county in which the
23 property is located.

24 R. AN EXCAVATOR THAT PROPOSES TO PERFORM A LARGE PROJECT SHALL
25 NOTIFY A ONE-CALL NOTIFICATION CENTER AS SOON AS POSSIBLE BUT NOT LESS
26 THAN FIFTEEN BUSINESS DAYS OR TWENTY-ONE CALENDAR DAYS BEFORE THE PROPOSED
27 START DATE TO SCHEDULE A LARGE PROJECT COORDINATION MEETING. THE LARGE
28 PROJECT NOTIFICATION TO A ONE-CALL NOTIFICATION CENTER INITIATES A MEETING
29 BETWEEN THE EXCAVATOR, THE LOCAL JURISDICTION AND THE UNDERGROUND
30 FACILITIES OPERATOR TO:

31 1. IDENTIFY THE PROPOSED PLAN FOR MARKING REQUEST NOTIFICATIONS.

32 2. DISCUSS ANY POTENTIAL UNDERGROUND FACILITY CONFLICTS.

33 3. ESTABLISH A MARKING AND EXCAVATION SCHEDULE.

34 4. DISCUSS ANY OTHER PROTECTIVE MEASURES THAT ARE APPROPRIATE TO
35 THE SCOPE AND DURATION OF THE LARGE PROJECT.

36 S. AN EXCAVATOR THAT REQUESTS A LARGE PROJECT COORDINATION MEETING
37 AS PRESCRIBED IN SUBSECTION R OF THIS SECTION SHALL PROVIDE THE FOLLOWING
38 INFORMATION TO THE ONE-CALL NOTIFICATION CENTER:

39 1. THE TYPE OF WORK TO BE PERFORMED.

40 2. THE COMPLETE GEOGRAPHIC SCOPE.

41 3. THE PROPOSED PHASED PLAN FOR MARKING NOTIFICATIONS WITHIN THE
42 COMPLETE GEOGRAPHIC SCOPE OF THE LARGE PROJECT.

43 4. THE PROPOSED START DATE.

44 5. THE EXPECTED COMPLETION DATE.

45 6. A PROPOSED MEETING DATE, TIME AND LENGTH OF THE LARGE PROJECTION
46 COORDINATION MEETING WITH THE AFFECTED UNDERGROUND FACILITIES OPERATOR AND
47 THE LOCAL JURISDICTION.

1 T. ON RECEIPT OF THE LARGE PROJECT NOTIFICATION FROM THE EXCAVATOR,
2 THE UNDERGROUND FACILITIES OPERATOR SHALL:

3 1. CONFIRM THE UNDERGROUND FACILITIES OPERATOR'S INTENT TO ATTEND
4 THE MEETING AS SOON AS POSSIBLE BUT NOT LATER THAN TWO BUSINESS DAYS AFTER
5 RECEIVING THE LARGE PROJECT NOTIFICATION.

6 2. DISCUSS ANY POTENTIAL CONFLICTS RELATED TO THE UNDERGROUND
7 FACILITIES THAT MAY OCCUR WITHIN THE COMPLETE GEOGRAPHIC SCOPE OF THE
8 LARGE PROJECT.

9 3. DETERMINE THE RESOURCES AND EXPECTED TIME FRAMES THAT ARE
10 NECESSARY TO COMPLETE MARKINGS BASED ON THE EXCAVATOR'S PROPOSED PHASED
11 PLAN FOR MARKING NOTIFICATIONS.

12 U. THE FOLLOWING APPLY TO THE LARGE PROJECT COORDINATION MEETING:

13 1. THE MEETING MAY BE ON-SITE OR VIRTUAL. THE ~~[EXCAVATOR]~~
14 ~~[PARTIES]~~ MAY INDICATE WHETHER THE MEETING SHOULD TAKE PLACE ON-SITE OR
15 VIRTUALLY ~~[BASED ON THE DISCRETION OF THE EXCAVATOR. IF VIRTUAL, THE~~
16 ~~EXCAVATOR SHALL PROVIDE A LINK TO JOIN THE MEETING]~~. IF ON-SITE, THE
17 EXCAVATOR MAY USE THE MEETING TO COMPLETE WHITE LINING.

18 2. AT THE MEETING, THE EXCAVATOR, THE LOCAL JURISDICTION AND THE
19 UNDERGROUND FACILITIES OPERATOR SHALL ESTABLISH A SCHEDULE FOR MARKING AND
20 EXCAVATION FOR THE SCOPE AND DURATION OF THE LARGE PROJECT. THE
21 EXCAVATOR, THE LOCAL JURISDICTION'S PUBLIC WORKS OR UTILITY INSPECTOR AND
22 THE UNDERGROUND FACILITIES OPERATOR SHALL AGREE ON THE QUANTITY OF TICKETS
23 AND THE GEOGRAPHIC AREA THAT THE TICKETS WILL COVER. THE EXCAVATOR SHALL
24 FOLLOW THE PHASED PLAN FOR TICKET CREATION THAT WAS AGREED TO AT THE
25 MEETING.

26 3. THE UNDERGROUND FACILITIES OPERATOR HAS FIFTEEN BUSINESS DAYS
27 FROM THE DATE THE EXCAVATOR NOTIFIES THE ONE-CALL NOTIFICATION CENTER TO
28 LOCATE AND MARK THE GEOGRAPHIC AREA IDENTIFIED IN THE PHASED PLAN. THIS
29 TIME FRAME MAY BE EXTENDED IF AGREED ON BY THE EXCAVATOR IN THE
30 INTERACTIVE POSITIVE RESPONSE SYSTEM.

31 V. THE ONE-CALL NOTIFICATION CENTER SHALL PROVIDE THE INTERACTIVE
32 POSITIVE RESPONSE SYSTEM, WHICH IS A TOOL FOR COMMUNICATION BETWEEN THE
33 EXCAVATOR AND THE UNDERGROUND FACILITIES OPERATOR FOR THE STATUS OF
34 LOCATING SITES, WORK UPDATES, CHANGES IN SCHEDULING AND OTHER FACTORS THAT
35 MAY IMPACT THE LARGE PROJECT.

36 W. THE EXCAVATOR, THE LOCAL JURISDICTION AND THE UNDERGROUND
37 FACILITIES OPERATOR MAY AGREE TO A PHASED MARKING SCHEDULE ~~[FOR A LARGE~~
38 ~~PROJECT]~~ THAT PROVIDES FOR TIMELY AND ACCURATE MARKINGS OF ACTIVE WORK
39 AREAS AS SUBMITTED BY THE EXCAVATOR WITHIN THE MARKING REQUEST.
40 COMPLIANCE WITH AN AGREED PHASED SCHEDULE IS DEEMED ~~[COMPLIANCE]~~
41 ~~[COMPLIANT]~~ WITH THE NOTICE AND MARKING REQUIREMENTS OF THIS ARTICLE. ANY
42 CHANGES TO THE AGREED PHASED SCHEDULE SHALL BE COMMUNICATED AND AGREED TO
43 BY THE EXCAVATOR, THE LOCAL JURISDICTION AND THE UNDERGROUND FACILITIES
44 OPERATOR THROUGH THE INTERACTIVE POSITIVE RESPONSE SYSTEM.

45 X. THE ONE-CALL NOTIFICATION CENTER IS RESPONSIBLE FOR DEVELOPING A
46 PROCESS FOR UNDERGROUND FACILITIES OPERATORS~~[,]~~ ~~[AND]~~ EXCAVATORS ~~[AND~~
47 ~~DESIGNERS]~~ TO USE THE INTERACTIVE POSITIVE RESPONSE SYSTEM TO ADMINISTER

1 LARGE PROJECT NOTIFICATIONS, INCLUDING TICKET REQUEST PROCEDURES,
2 COORDINATION MEETING STANDARDS AND RECORDKEEPING REQUIREMENTS.

3 Y. IF THE EXCAVATOR, LOCAL JURISDICTION AND UNDERGROUND FACILITIES
4 OPERATOR DO NOT MUTUALLY AGREE ON A MARKING SCHEDULE [FOR A LARGE
5 PROJECT], THE MARKINGS SHALL BE COMPLETED WITHIN FIFTEEN BUSINESS DAYS
6 [FROM THE CREATION OF THE MARKING REQUEST].

7 Z. THE VALIDITY PERIOD FOR THE MARKINGS PRESCRIBED IN SUBSECTION J
8 OF THIS SECTION APPLIES TO BOTH LARGE PROJECT TICKETS AND STANDARD
9 EXCAVATION NOTICE TICKETS.

10 Sec. 3. Section 40-360.23, Arizona Revised Statutes, is amended to
11 read:

12 40-360.23. Conducting excavation in careful, prudent manner;
13 liability for negligence; notice; obliteration
14 of marks

15 A. Except as otherwise provided in section 40-360.28, subsection E,
16 obtaining information as required by this article does not excuse any
17 person making any excavation from doing so in a careful and prudent
18 manner, nor shall it excuse such persons from liability for any damage or
19 injury resulting from their negligence.

20 B. Except as otherwise provided in section 40-360.22, subsection D,
21 after markings have been made pursuant to section 40-360.22, an excavator
22 shall notify either the underground facilities operator or an organization
23 designated by the underground facilities operator if the excavator
24 encounters an underground facility that has not been located and marked or
25 has been marked in the wrong location.

26 C. An excavator or an underground facilities operator shall not
27 move or obliterate markings made pursuant to this article or fabricate
28 markings in an unmarked location for the purpose of concealing or avoiding
29 liability for a violation of or noncompliance with this article.

30 D. AN EXCAVATOR MAY BEGIN EXCAVATING AFTER THE EXCAVATOR CONTACTS
31 AND RECEIVES ALL OF THE AFFECTED UNDERGROUND FACILITIES OWNERS' RESPONSES
32 THROUGH THE INTERACTIVE POSITIVE RESPONSE SYSTEM. AN UNDERGROUND
33 FACILITIES OPERATOR SHALL ENTER ALL LOCATE STATUS INFORMATION, INCLUDING
34 MARKED, NO CONFLICT OR DELAYED INTO THE INTERACTIVE POSITIVE RESPONSE
35 SYSTEM WITHIN THE TIME REQUIRED BY THIS ARTICLE. AN UNDERGROUND
36 FACILITIES OPERATOR'S DUTY TO MARK IS SATISFIED BY COMPLIANCE WITH A LARGE
37 PROJECT PLAN AS PRESCRIBED IN SECTION 40-360.22.

38 E. NOTWITHSTANDING ANY OTHER LAW, THIS ARTICLE DOES NOT SUPERSEDE
39 OR PREEMPT ANY ORDINANCE, STANDARD, POLICY, PROCEDURE OR OTHER REQUIREMENT
40 OF A CITY OR TOWN THAT RELATES TO EXCAVATIONS.

41 Sec. 4. Section 40-360.26, Arizona Revised Statutes, is amended to
42 read:

43 40-360.26. Damage of underground facility; liability to
44 owner; homeowner and tenant exemption

45 A. If any underground facility is damaged by any person in
46 violation of this article as a result of failing to obtain information as
47 to its location, failing to take measures for protection of the facilities

1 or failing to excavate in a careful and prudent manner, the person is
2 liable to the owner of the underground facility for the total cost of the
3 repair of the facility.

4 B. A homeowner or homeowners' association engaging in excavating in
5 an express or implied private property utility easement across property
6 owned by the homeowner or homeowners' association is not liable to the
7 owner or operator of the underground facility **THAT IS** damaged by the
8 homeowner or homeowners' association pursuant to this section if the
9 damaged underground facility is not buried or placed below ground in
10 accordance with the applicable standards, if the underground facility is
11 not located within the easement or if the homeowner or homeowners'
12 association engaged in the excavation has complied with section 40-360.22.
13 This subsection does not apply to any person **WHO IS** employed by a
14 homeowner or a homeowners' association including a contractor licensed
15 pursuant to title 32, chapter 10 or a person ~~engaging~~ **WHO ENGAGES** in
16 contracting without a license as prohibited by section 32-1151.

17 C. Notwithstanding any other provision in this article, a homeowner
18 is not liable for any costs or expenses, including damage to third
19 parties, resulting from damage to an underground facility **THAT IS** owned by
20 the homeowner but located within a public right-of-way if the damage was
21 not caused by the homeowner's actions or by the homeowner's refusal to
22 grant permission to the underground facilities operator of a sewer system
23 to access the real property for the purpose of ascertaining the location
24 of the underground sewer facility. A tenant is not liable for any costs
25 or expenses, including damage to third parties, resulting from damage to
26 an underground facility **THAT IS** owned by the tenant but located within a
27 mobile home park if the damage was not caused by the tenant's actions or
28 by the tenant's refusal to grant permission to the landlord to access the
29 mobile home for the purpose of ascertaining the location of the
30 underground facility.

31 **D. AN EXCAVATOR THAT COMPLIES WITH AN AGREED LARGE PROJECT SCHEDULE**
32 **PURSUANT TO SECTION 40-360.22 AND THAT USES THE INTERACTIVE POSITIVE**
33 **RESPONSE SYSTEM FOR ALL COMMUNICATIONS REQUIRED UNDER THIS ARTICLE IS**
34 **DEEMED TO HAVE SATISFIED THE EXCAVATOR'S DUTY TO REQUEST AND MAINTAIN**
35 **MARKINGS UNDER THIS ARTICLE FOR THE PORTION OF THE PROJECT COVERED BY THE**
36 **LARGE PROJECT SCHEDULE.**

37 Sec. 5. Section 40-360.28, Arizona Revised Statutes, is amended to
38 read:

39 **40-360.28. Civil penalty; liability**

40 A. Except as provided in section 40-360.22, subsection M, a person
41 who violates any provision of this article is subject to a civil penalty
42 in an amount **OF** not ~~to exceed five thousand dollars~~ **MORE THAN \$5,000** to be
43 imposed by the court in favor of the state. Any penalties received by the
44 state shall be deposited in the state general fund.

45 B. If a violation of this article results in damage to an
46 underground facility, the violator is liable to all affected underground

1 facilities operators and excavators for all resulting damages proximately
2 caused by the violations, including economic loss.

3 C. If a person violates this article by failing to provide timely
4 notice as required by this article, by failing to respond in the time and
5 manner provided by this article or by failing to locate and mark an
6 underground facility in the manner provided by this article, the person is
7 liable to all affected underground facilities operators and excavators for
8 all damages proximately caused by the violation, including economic loss.

9 D. Notwithstanding any other law, a violation of section 40-360.22,
10 subsection D or subsection L, paragraph 3 is a superseding event that
11 breaks the chain of causation for any damages that could result from an
12 underground facilities operator's failure to accurately locate or mark an
13 underground facility.

14 E. If a landlord or an excavator complies with the duties set forth
15 in sections 40-360.22, 40-360.30 and 40-360.32 for all facilities operated
16 by a landlord as provided in section 40-360.22, subsection P, paragraph 1,
17 the person is not liable for any death or injury to persons or property or
18 for any economic loss to any person to the extent the conduct is regulated
19 by this article. This section does not excuse any landlord or excavator
20 from liability for any death or injury to persons or property or for any
21 economic loss to any person to the extent the injury or loss does not
22 arise from the conduct regulated by this article.

23 F. This section ~~is not applicable~~ DOES NOT APPLY to an excavation
24 made:

25 1. During an emergency ~~which~~ THAT involves IMMEDIATE danger to
26 life, health or property if reasonable precautions are taken to protect
27 underground facilities.

28 2. In agricultural operations or for the purpose of finding or
29 extracting natural resources.

30 3. With hand tools on property owned or occupied by the person
31 performing the excavation while gardening or tilling such property.

32 G. AN UNDERGROUND FACILITIES OPERATOR OR AN EXCAVATOR MAY BE
33 SUBJECT TO A CIVIL PENALTY AS PROVIDED BY THIS SECTION IF THE UNDERGROUND
34 FACILITIES OPERATOR OR THE EXCAVATOR FAILS:

35 1. TO NOTIFY THE ONE-CALL NOTIFICATION CENTER AT LEAST TWO BUSINESS
36 DAYS BEFORE BEGINNING EXCAVATION.

37 2. TO COMPLY WITH A LARGE PROJECT TICKET COORDINATION PLAN.

38 3. TO ADHERE TO THE REQUIREMENTS OF THE INTERACTIVE POSITIVE
39 RESPONSE SYSTEM.

40 Sec. 6. Title 40, chapter 2, article 6.3, Arizona Revised Statutes,
41 is amended by adding section 40-360.33, to read:

42 40-360.33. One-call notification center; written procedures;
43 technical and data security standards

44 [A.] THE ~~[COMMISSION, IN CONSULTATION WITH THE]~~ ONE-CALL
45 NOTIFICATION CENTER~~[, IN CONSULTATION WITH THE CORPORATION COMMISSION]~~ AND
46 IMPACTED STAKEHOLDERS, SHALL:

1 1. ~~[ADOPT RULES]~~ [ESTABLISH A METHOD] TO IMPLEMENT THIS ARTICLE
2 THAT ~~[INCLUDE]~~ [INCLUDES] ALL OF THE FOLLOWING:
3 (a) PROCEDURES FOR LARGE PROJECT TICKETS.
4 (b) MANDATORY WHITE LINING.
5 (c) THE INTERACTIVE POSITIVE RESPONSE SYSTEM.
6 ~~[(d) THE MINIMUM TECHNICAL AND DATA SECURITY STANDARDS.]~~
7 2. ESTABLISH MINIMUM TECHNICAL AND DATA SECURITY STANDARDS FOR THE
8 INTERACTIVE POSITIVE RESPONSE SYSTEM.
9 [B. MAKE THE DETAILS OF THE METHOD AND MINIMUM TECHNICAL AND DATA
10 SECURITY STANDARDS ADOPTED PURSUANT TO THIS SECTION AVAILABLE ON THE
11 ONE-CALL NOTIFICATION CENTER'S PUBLICLY ACCESSIBLE WEBSITE.]
12 Sec. 7. One-call notification center: written procedures:
13 adoption; one year; one year
14 The ~~[corporation commission]~~ [one-call notification center] shall
15 ~~[adopt rules to implement]~~ [comply with the requirements of section
16 40-360.33, Arizona Revised Statutes, as added by] this act~~[.]~~ within one
17 year after the effective date of this act.

18 Enroll and engross to conform

19 Amend title to conform

And, as so amended, it do pass

GAIL GRIFFIN
CHAIRMAN

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